

24NWCV02787 24NWCV02787

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Case Number: 24NWCV02787 Hearing Date: August 6, 2026 Dept: L

Plaintiff Simin LP's Motion

for Leave to File the Third Amended Complaint is GRANTED.

Plaintiff is ordered to file

the Third Amended Complaint within 5 days of this order.

Plaintiff to give notice.

Background

On August 27, 2024, Plaintiff

Simin LP ("Plaintiff") filed this action against Defendant Wells International Marketing Group, Inc. ("Defendant"). This action was originally for unlawful detainer.

After the Court sustained

Defendant's Demurrer to the Complaint with leave to amend (11/13/24 Order),

Plaintiff filed the First Amended Complaint (FAC) on November 22, 2024.

After the Court sustained

Defendant's Demurrer to the FAC with leave to amend (1/14/25 Order), Plaintiff filed the Second Amended Complaint (SAC) on February 4, 2025. The SAC converted the action to one for breach of contract only.

On January 13, 2026, the Court

overruled Defendant's Demurrer to the SAC. (1/13/26 Minute Order.)

On January 22, 2026, Defendant

filed an Answer to the SAC.

Plaintiff now moves for leave to file the Third Amended Complaint (TAC).

Defendants filed a late opposition on July 30, 2026, where the deadline was July 24, 2026. Plaintiff filed a Notice of Defendant's Failure to Timely File and Serve Opposition to the Motion. Defendant filed a Response to Plaintiff's Notice, indicating that the untimely opposition was due to an inadvertent calendaring error. In its discretion, the Court will considered the late opposition.

Legal Standard

Pursuant to Code of Civil

Procedure section 473, subdivision (a)(1), "[t]he court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading." Amendment may be allowed at any time before or after commencement of trial. (Code Civ. Proc., § 576.) "[T]he court's discretion will usually be exercised liberally to permit amendment of the pleadings. The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified." (Howard v. County of San Diego, (2010) 184 Cal.App.4th 1422, 1428 (internal citations omitted).)

"If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend...." (Morgan v. Sup. Ct. ("Morgan") (1959) 172 Cal.App.2d 527, 530.) Prejudice includes "delay in trial, loss of critical evidence, or added costs of preparation." (Solit v. Tokai Bank, Ltd. New York Branch, (1999) 68 Cal.App.4th 1435, 1448.)

Discussion

Plaintiff now moves for leave to file the TAC, which names Ramiel Begzadeh, the president and CEO of Defendant, as a new defendant via alter ego liability allegations.

Procedural Requirements of California Rules of Court, Rule 3.1324(b)

A motion to amend a pleading before trial must include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments. (Cal. Rules of Court, rule 3.1324(a).) The motion must also state what allegations are proposed to be deleted or added, by page, paragraph, and line number. (Ibid.) Finally, a separate supporting declaration specifying the effect of the amendment, why the amendment is necessary and proper, when the facts giving rise to the amended allegations were discovered, and the reason the request for amendment was not made earlier must also accompany the motion. (Cal. Rules of Court, rule 3.134(b).)¿¿

Here, Plaintiff included a copy of the proposed TAC, including a clean and redlined version. (Austin Decl., ¶¶ 2-3, Exhs. A-B.) While not explicitly stated in the supporting declaration, Plaintiff suggests that new allegations are proper where “[Defendant] and Begzadeh have a unity of interest that would support a finding of alter ego liability” and “[Defendant] has been and remains undercapitalized to the point that it is judgment proof.” (Mot., 6:5-10.) Further, on February 5, 2026, Plaintiff emailed Defense counsel, requesting a stipulation to amend the SAC to add Ramiel Begzadeh as the alter ego of Defendant, but Defense counsel refused. (Austin Decl., ¶ 10.)

As pointed out by Defendant, the Court finds that the supporting declaration does not state “when the facts giving rise to the amended allegations were discovered, and the reason the request for amendment was not made earlier must also accompany the motion.” (Cal. Rules of Court, rule 3.134(b).)¿Nevertheless, the Court finds that Plaintiff has substantially complied with the procedural requirements for leave to amend. The Court discusses the effect of the delay below.

Delay and Relative Prejudice

Plaintiff argues that Defendant and Mr. Begzadeh will be unable to show any substantial prejudice as a result of the amendment. Trial is not until August 23, 2027. (Austin Decl., ¶ 11.) Mr. Begzadeh has ample time to conduct necessary discovery. Plaintiff further argues that it “could not have added Begzadeh until after this case was converted from an unlawful detainer matter to a breach of contract matter.” (mot., 6:26-27.)

Defendant argues that

Plaintiff fails to provide justification as to why this amendment was not sought earlier. For example, Plaintiff decided to pursue its alter ego theory as early as February 5, 2026, when it sought a stipulation from Defense counsel. However, Plaintiff did not file this Motion until July 8, 2026.

Further, Defendant argues that the proposed amendment would cause prejudice to Mr. Begzadeh, who would be required to participate in intrusive alter ego discovery.

While the Court agrees that

Plaintiff has failed to justify its delay in seeking this amendment, the Court does not find such reason alone sufficient grounds to deny the motion given the strong policy preference favoring leave to amend. Further, the Court is not persuaded that Defendant or Mr. Begzadeh will be prejudiced if leave to amend is granted. The fact that Mr. Begzadeh will have to participate in discovery is not grounds to deny the Motion. There is no indication that discovery has been fully completed or that the amendments would result in substantially increased discovery costs or prolonged delay. (See Est. of Murphy (1978) 82 Cal.App.3d 304, 311 [completion of discovery was a factor in upholding trial court's denial of leave to amend where amendment would expand the scope of the litigation].) Trial is more than a year away.

Viability of Proposed Amendment

Defendant argues that, where

the proposed amendment is futile, leave to amend may be denied. Defendant makes substantive arguments regarding whether the proposed alter ego allegations are sufficient.

The Court acknowledges that

“leave to amend may be denied where permitting an amendment would be futile.” (Singh v. Lipworth (2014) 227 Cal.App.4th 813, 828.) However, here, the Court finds that the alter ego liability allegations are not facially deficient. Defendant's arguments are better suited for a demurrer or motion for judgment on the pleadings. (See Kittredge Sports Co. v. Superior Court (1989) 213 Cal.App.3d 1045, 1048; see also Atkinson v. Elk Corp. (2003) 109 Cal.App.4th 739, 760 “[T]he better course of action would have been to allow [plaintiff] to amend the complaint and then let the parties test its legal sufficiency in other appropriate proceedings.”.)

Conclusion

Based on the forgoing,

Plaintiff's Motion for Leave to File the Third Amended Complaint is granted.

Plaintiff is ordered to file the Third Amended Complaint within 5 days of this order.